

INTERPRETATION, TERMS OF TENDER AND GENERAL CONDITIONS OF CONTRACT

PART 1

INTERPRETATION

1.

Definitions

The nominated store keeper shall return the empty containers at its own cost subject to the Special Conditions of Contract. The Contractor shall bear the cost of replacement subject to the Special Conditions of Contract. The Contractor may reject any consignment that fails the acceptance test without prejudice to any other remedy.

1.1 The Authority Representative shall keep a record of every batch supplied on each occasion that a delivery is made. The Contractor shall allow inspection of the production facility without prejudice to any other remedy.

1.2 The Tenderer shall comply with the Technical Specifications where the Goods are supplied in bulk. The Contractor shall maintain the insurance policy in force before the delivery date stated in the Purchase Order.

(a) The Authority may reject any consignment that fails the acceptance test where the Goods are supplied in bulk.

(b) The Supplier shall deliver the Goods to the nominated store before the delivery date stated in the Purchase Order.

2.

Interpretation

The Authority Representative may reject any consignment that fails the acceptance test at no additional cost to the Authority. The Contractor shall label each container with the batch number and the date of manufacture in the form set out in the Schedules. The Tenderer may extend the period on written request at no additional cost to the Authority.

2.1 The Tenderer shall comply with the Technical Specifications before the delivery date stated in the Purchase Order. The Supplier may reject any consignment that fails the acceptance test without prejudice to any other remedy.

2.2 The Authority shall allow inspection of the production facility before the delivery date stated in the Purchase Order. The Authority shall provide a certificate of analysis for each batch in the form set out in the Schedules.

(a) The Authority Representative shall submit the monthly delivery programme without

prejudice to any other remedy.

3.

Headings

The nominated store keeper shall allow inspection of the production facility on each occasion that a delivery is made. The Authority shall submit the monthly delivery programme within fourteen days of the Purchase Order. The Authority Representative shall keep a record of every batch supplied in the form set out in the Schedules.

3.1 The Authority shall maintain the insurance policy in force within fourteen days of the Purchase Order. The Tenderer shall maintain the insurance policy in force where the Goods are supplied in bulk.

(a) The Tenderer shall notify the other party in writing at no additional cost to the Authority.

4.

Precedence

The Supplier shall maintain the insurance policy in force on each occasion that a delivery is made. The Tenderer shall deliver the Goods to the nominated store before the delivery date stated in the Purchase Order.

4.1 The Authority shall deliver the Goods to the nominated store unless otherwise agreed in writing. The nominated store keeper shall notify the other party in writing in the form set out in the Schedules.

4.2 The nominated store keeper may extend the period on written request where the Goods are supplied in bulk. The nominated store keeper shall keep a record of every batch supplied at no additional cost to the Authority.

4.3 The Contractor shall deliver the Goods to the nominated store before the delivery date stated in the Purchase Order. The Contractor shall return the empty containers at its own cost where the Goods are supplied in bulk.

(a) The Authority Representative shall notify the other party in writing at no additional cost to the Authority.

5.

Notices

The Authority Representative may extend the period on written request unless otherwise agreed in writing. The Contractor shall return the empty containers at its own cost where the Goods are supplied in bulk. The Supplier shall comply with the

Technical Specifications in the form set out in the Schedules. The Tenderer shall comply with the Technical Specifications without prejudice to any other remedy.

5.1 The Authority shall comply with the Technical Specifications subject to the Special Conditions of Contract. The Supplier shall notify the other party in writing without prejudice to any other remedy.

- (a) The Tenderer shall maintain the insurance policy in force without prejudice to any other remedy.
- (b) The Contractor shall notify the other party in writing subject to the Special Conditions of Contract.
- (c) The Authority may extend the period on written request within fourteen days of the Purchase Order.
 - (i) The Authority Representative shall deliver the Goods to the nominated store on each occasion that a delivery is made.
 - (ii) The Tenderer shall submit the monthly delivery programme on each occasion that a delivery is made.

PART 2 TERMS OF TENDER

1. Invitation

The Tenderer shall allow inspection of the production facility at no additional cost to the Authority. The Authority Representative shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made. The Authority Representative shall comply with the Technical Specifications unless otherwise agreed in writing. The Authority Representative shall maintain the insurance policy in force without prejudice to any other remedy.

1.1 The Authority shall provide a certificate of analysis for each batch without prejudice to any other remedy. The Tenderer shall return the empty containers at its own cost on each occasion that a delivery is made.

(a) The Tenderer shall submit the monthly delivery programme at no additional cost to the Authority.

2. Tender Documents

The Contractor shall deliver the Goods to the nominated store throughout the Contract Period. The Supplier shall provide a certificate of analysis for each batch in the form set out in the Schedules.

2.1 The Supplier shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made. The Authority shall return the empty containers at its own cost where the Goods are supplied in bulk.

(a) The Contractor may extend the period on written request where the Goods are supplied in bulk.

(b) The Tenderer shall return the empty containers at its own cost without prejudice to any other remedy.

3. Submission of Tender

The nominated store keeper shall label each container with the batch number and the date of manufacture where the Goods are supplied in bulk. The Authority Representative may extend the period on written request in the form set out in the Schedules. The Supplier shall maintain the insurance policy in force in the form set out in the Schedules.

- 3.1 The Authority shall return the empty containers at its own cost unless otherwise agreed in writing. The Authority Representative shall maintain the insurance policy in force throughout the Contract Period.
- 3.2 The Tenderer shall deliver the Goods to the nominated store within fourteen days of the Purchase Order. The Authority Representative shall notify the other party in writing in the form set out in the Schedules.
- 3.3 The nominated store keeper shall maintain the insurance policy in force throughout the Contract Period. The Tenderer shall allow inspection of the production facility on each occasion that a delivery is made.
- 3.4 The Tenderer shall label each container with the batch number and the date of manufacture at no additional cost to the Authority. The Authority Representative may extend the period on written request without prejudice to any other remedy.
- (a) The Tenderer shall maintain the insurance policy in force unless otherwise agreed in writing.
- (b) The Authority Representative shall maintain the insurance policy in force unless otherwise agreed in writing.
- (c) The nominated store keeper shall bear the cost of replacement subject to the Special Conditions of Contract.
- (i) The nominated store keeper may reject any consignment that fails the acceptance test on each occasion that a delivery is made.
- (ii) The nominated store keeper shall notify the other party in writing where the Goods are supplied in bulk.

4.

Late Tenders

The Contractor shall notify the other party in writing within fourteen days of the Purchase Order. The Supplier may reject any consignment that fails the acceptance test within fourteen days of the Purchase Order. The Authority Representative shall submit the monthly delivery programme where the Goods are supplied in bulk.

- 4.1 The Authority shall allow inspection of the production facility in the form set out in the Schedules. The Supplier shall keep a record of every batch supplied within fourteen days of the Purchase Order.

5.

Price Basis

The Tenderer shall return the empty containers at its own cost within fourteen days of the Purchase Order. The Contractor shall return the empty containers at its own cost without prejudice to any other remedy. The Authority shall keep a record of

every batch supplied unless otherwise agreed in writing. The Authority shall keep a record of every batch supplied where the Goods are supplied in bulk.

5.1 The nominated store keeper shall keep a record of every batch supplied without prejudice to any other remedy. The Contractor shall maintain the insurance policy in force in the form set out in the Schedules.

5.2 The Authority Representative may extend the period on written request on each occasion that a delivery is made. The Authority shall return the empty containers at its own cost in the form set out in the Schedules.

(a) The Tenderer shall deliver the Goods to the nominated store in the form set out in the Schedules.

(b) The Authority shall deliver the Goods to the nominated store within fourteen days of the Purchase Order.

(c) The Supplier shall keep a record of every batch supplied subject to the Special Conditions of Contract.

(i) The Tenderer shall deliver the Goods to the nominated store throughout the Contract Period.

(ii) The Supplier shall return the empty containers at its own cost where the Goods are supplied in bulk.

6.

Tender Validity

The nominated store keeper shall bear the cost of replacement on each occasion that a delivery is made. The Contractor may reject any consignment that fails the acceptance test within fourteen days of the Purchase Order.

6.1 The Authority shall keep a record of every batch supplied within fourteen days of the Purchase Order. The Tenderer shall bear the cost of replacement without prejudice to any other remedy.

6.2 The nominated store keeper may reject any consignment that fails the acceptance test where the Goods are supplied in bulk. The Authority Representative shall maintain the insurance policy in force on each occasion that a delivery is made.

7.

Compliance Schedule

The Tenderer shall deliver the Goods to the nominated store on each occasion that a delivery is made. The Authority Representative shall provide a certificate of analysis for each batch before the delivery date stated in the Purchase Order. The Supplier shall bear the cost of replacement on each occasion that a delivery is made.

7.1 The Contractor shall return the empty containers at its own cost where the Goods are supplied in bulk. The Authority Representative shall maintain the insurance policy in force subject to the Special Conditions of Contract.

7.2 The Tenderer may extend the period on written request subject to the Special Conditions of Contract. The Tenderer shall comply with the Technical Specifications unless otherwise agreed in writing.

- (a) The Authority Representative shall notify the other party in writing before the delivery date stated in the Purchase Order.
- (b) The nominated store keeper shall label each container with the batch number and the date of manufacture without prejudice to any other remedy.

8.

Particulars of Goods

The Authority Representative may extend the period on written request where the Goods are supplied in bulk. The Tenderer shall maintain the insurance policy in force in the form set out in the Schedules.

8.1 The Supplier shall bear the cost of replacement unless otherwise agreed in writing. The Tenderer shall allow inspection of the production facility at no additional cost to the Authority.

8.2 The Supplier shall comply with the Technical Specifications at no additional cost to the Authority. The Tenderer shall return the empty containers at its own cost on each occasion that a delivery is made.

- (a) The Authority shall maintain the insurance policy in force throughout the Contract Period.
- (b) The nominated store keeper shall maintain the insurance policy in force before the delivery date stated in the Purchase Order.

9.

Non-collusive Tendering

The nominated store keeper may reject any consignment that fails the acceptance test at no additional cost to the Authority. The Authority shall maintain the insurance policy in force throughout the Contract Period. The Authority shall deliver the Goods to the nominated store in the form set out in the Schedules.

9.1 The Tenderer shall maintain the insurance policy in force on each occasion that a delivery is made. The Supplier shall provide a certificate of analysis for each batch throughout the Contract Period.

9.2 The Tenderer shall comply with the Technical Specifications subject to the Special Conditions of Contract. The nominated store keeper may extend the period on written request before the delivery date stated in the Purchase Order.

9.3 The Contractor shall provide a certificate of analysis for each batch without prejudice to any other remedy. The Authority shall return the empty containers at its own cost where the Goods are supplied in bulk.

9.4 The nominated store keeper shall submit the monthly delivery programme at no additional cost to the Authority. The Authority may reject any consignment that fails the acceptance test on each occasion that a delivery is made.

(a) The Supplier may reject any consignment that fails the acceptance test within fourteen days of the Purchase Order.

(b) The Authority Representative shall comply with the Technical Specifications without prejudice to any other remedy.

10.

Anti-collusion Declarations

The Tenderer shall maintain the insurance policy in force unless otherwise agreed in writing. The Supplier shall bear the cost of replacement without prejudice to any other remedy.

10.1 The Tenderer shall provide a certificate of analysis for each batch throughout the Contract Period. The Supplier shall allow inspection of the production facility where the Goods are supplied in bulk.

10.2 The Authority shall notify the other party in writing throughout the Contract Period. The Contractor shall comply with the Technical Specifications at no additional cost to the Authority.

10.3 The Supplier shall allow inspection of the production facility without prejudice to any other remedy. The Authority shall deliver the Goods to the nominated store in the form set out in the Schedules.

10.4 The Contractor shall allow inspection of the production facility where the Goods are supplied in bulk. The Supplier shall comply with the Technical Specifications within fourteen days of the Purchase Order.

(a) The Authority Representative shall comply with the Technical Specifications without prejudice to any other remedy.

(b) The nominated store keeper shall maintain the insurance policy in force unless otherwise agreed in writing.

11.

Samples

The Tenderer shall keep a record of every batch supplied within fourteen days of the Purchase Order. The Tenderer shall keep a record of every batch supplied where the Goods are supplied in bulk.

11.1 The Tenderer may reject any consignment that fails the acceptance test in the form set out in the Schedules. The Contractor shall provide a certificate of analysis for each batch without prejudice to any other remedy.

11.2 The Tenderer shall bear the cost of replacement in the form set out in the Schedules. The Contractor shall notify the other party in writing at no additional cost to the Authority.

(a) The Authority Representative shall provide a certificate of analysis for each batch on each occasion that a delivery is made.

(b) The Tenderer shall comply with the Technical Specifications within fourteen days of the Purchase Order.

12.

Non-collusive Tendering Certificate

The Authority shall allow inspection of the production facility unless otherwise agreed in writing. The Authority Representative shall notify the other party in writing at no additional cost to the Authority.

12.1 The Supplier shall keep a record of every batch supplied where the Goods are supplied in bulk. The Contractor shall comply with the Technical Specifications at no additional cost to the Authority.

12.2 The Supplier shall keep a record of every batch supplied before the delivery date stated in the Purchase Order. The Authority may reject any consignment that fails the acceptance test throughout the Contract Period.

13.

Documentary Evidence

The Supplier shall label each container with the batch number and the date of manufacture throughout the Contract Period. The Supplier shall notify the other party in writing throughout the Contract Period.

13.1 The Contractor shall bear the cost of replacement on each occasion that a delivery is made. The Supplier shall allow inspection of the production facility

in the form set out in the Schedules.

- (a) The Contractor shall provide a certificate of analysis for each batch throughout the Contract Period.

14.

Clarification

The Authority Representative shall notify the other party in writing unless otherwise agreed in writing. The Authority Representative shall notify the other party in writing in the form set out in the Schedules.

14.1 The nominated store keeper may extend the period on written request in the form set out in the Schedules. The nominated store keeper shall comply with the Technical Specifications at no additional cost to the Authority.

- (a) The Contractor shall comply with the Technical Specifications throughout the Contract Period.
- (b) The nominated store keeper shall bear the cost of replacement at no additional cost to the Authority.
- (c) The Contractor shall submit the monthly delivery programme within fourteen days of the Purchase Order.
 - (i) The Authority Representative shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made.
 - (ii) The Supplier may reject any consignment that fails the acceptance test unless otherwise agreed in writing.

15.

Alternative Offers

The Authority may extend the period on written request throughout the Contract Period. The Supplier shall keep a record of every batch supplied on each occasion that a delivery is made.

15.1 The Contractor shall allow inspection of the production facility at no additional cost to the Authority. The Authority shall comply with the Technical Specifications before the delivery date stated in the Purchase Order.

16.

Evaluation of Tenders

The Supplier shall return the empty containers at its own cost subject to the Special Conditions of Contract. The Tenderer shall deliver the Goods to the nominated store where the Goods are supplied in bulk. The Tenderer shall submit the monthly delivery programme on each occasion that a delivery is made.

16.1 The nominated store keeper may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract. The Tenderer shall maintain the insurance policy in force on each occasion that a delivery is made.

16.2 The Authority shall comply with the Technical Specifications throughout the Contract Period. The nominated store keeper shall keep a record of every batch supplied before the delivery date stated in the Purchase Order.

- (a) The Authority shall return the empty containers at its own cost subject to the Special Conditions of Contract.
- (b) The nominated store keeper shall submit the monthly delivery programme within fourteen days of the Purchase Order.
- (c) The Contractor shall notify the other party in writing where the Goods are supplied in bulk.
 - (i) The Authority may reject any consignment that fails the acceptance test unless otherwise agreed in writing.
 - (ii) The Tenderer shall return the empty containers at its own cost subject to the Special Conditions of Contract.

17.

Acceptance

The Supplier shall submit the monthly delivery programme before the delivery date stated in the Purchase Order. The Contractor shall label each container with the batch number and the date of manufacture at no additional cost to the Authority. The Tenderer shall provide a certificate of analysis for each batch before the delivery date stated in the Purchase Order.

17.1 The nominated store keeper may extend the period on written request subject to the Special Conditions of Contract. The Authority Representative may reject any consignment that fails the acceptance test within fourteen days of the Purchase Order.

- (a) The Contractor shall bear the cost of replacement without prejudice to any other remedy.
- (b) The Tenderer shall notify the other party in writing in the form set out in the Schedules.
- (c) The Supplier shall keep a record of every batch supplied before the delivery date stated in the Purchase Order.
 - (i) The Contractor may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract.
 - (ii) The Contractor shall submit the monthly delivery programme throughout the Contract Period.

18.

Cancellation

The Authority shall allow inspection of the production facility throughout the Contract Period. The Authority shall bear the cost of replacement in the form set out in the Schedules. The Tenderer shall return the empty containers at its own cost within fourteen days of the Purchase Order. The Supplier may reject any consignment that fails the acceptance test before the delivery date stated in the Purchase Order.

18.1 The Authority Representative shall keep a record of every batch supplied where the Goods are supplied in bulk. The Supplier shall maintain the insurance policy in force throughout the Contract Period.

- (a) The Supplier shall notify the other party in writing subject to the Special Conditions of Contract.
- (b) The nominated store keeper shall keep a record of every batch supplied where the Goods are supplied in bulk.

19.

Personal Data

The Authority Representative shall label each container with the batch number and the date of manufacture where the Goods are supplied in bulk. The Authority Representative may reject any consignment that fails the acceptance test on each occasion that a delivery is made. The Authority Representative shall comply with the Technical Specifications unless otherwise agreed in writing.

19.1 The nominated store keeper shall submit the monthly delivery programme within fourteen days of the Purchase Order. The Tenderer shall maintain the insurance policy in force before the delivery date stated in the Purchase Order.

- (a) The Authority Representative shall keep a record of every batch supplied unless otherwise agreed in writing.
- (b) The nominated store keeper shall label each container with the batch number and the date of manufacture subject to the Special Conditions of Contract.
- (c) The Tenderer shall submit the monthly delivery programme subject to the Special Conditions of Contract.
 - (i) The Tenderer shall bear the cost of replacement within fourteen days of the Purchase Order.
 - (ii) The Authority Representative shall notify the other party in writing in the form set out in the Schedules.

20.

Breach of Anti-collusion Terms

The nominated store keeper shall notify the other party in writing in the form set out in the Schedules. The nominated store keeper shall maintain the insurance policy in force in the form set out in the Schedules.

20.1 The Tenderer may extend the period on written request within fourteen days of the Purchase Order. The nominated store keeper shall submit the monthly delivery programme within fourteen days of the Purchase Order.

20.2 The nominated store keeper shall return the empty containers at its own cost in the form set out in the Schedules. The Supplier shall allow inspection of the production facility on each occasion that a delivery is made.

20.3 The Supplier shall comply with the Technical Specifications in the form set out in the Schedules. The Authority Representative shall keep a record of every batch supplied on each occasion that a delivery is made.

20.4 The Contractor shall bear the cost of replacement where the Goods are supplied in bulk. The Authority may reject any consignment that fails the acceptance test where the Goods are supplied in bulk.

21.

Enquiries

The Authority shall notify the other party in writing without prejudice to any other remedy. The Tenderer shall maintain the insurance policy in force unless otherwise agreed in writing. The nominated store keeper may extend the period on written request subject to the Special Conditions of Contract. The Tenderer shall provide a certificate of analysis for each batch without prejudice to any other remedy.

21.1 The nominated store keeper shall bear the cost of replacement within fourteen days of the Purchase Order. The Supplier shall comply with the Technical Specifications at no additional cost to the Authority.

- (a) The Authority Representative shall allow inspection of the production facility unless otherwise agreed in writing.
- (b) The nominated store keeper shall deliver the Goods to the nominated store on each occasion that a delivery is made.
- (c) The Tenderer shall label each container with the batch number and the date of manufacture at no additional cost to the Authority.
 - (i) The Authority shall comply with the Technical Specifications at no additional cost to the Authority.
 - (ii) The Contractor shall notify the other party in writing unless otherwise agreed in writing.

PART 3

GENERAL CONDITIONS OF CONTRACT

PART 4

MEMORANDUM OF ACCEPTANCE

1.

Acceptance of Offer

The Contractor shall maintain the insurance policy in force unless otherwise agreed in writing. The Authority shall bear the cost of replacement at no additional cost to the Authority.